

Mississippi Expungement Agent Training Reference

A complete operational knowledge base for record-relief eligibility, procedure, forms, and filing under Mississippi law.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	Statewide (all 82 counties; circuit, county, justice, municipal courts)
Primary statutes	Miss. Code Ann. §§ 99-19-71, 99-15-26, 99-19-72, 41-29-150, 63-11-30, 21-23-7
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law through the 2019 amendments (HB 1352 / HB 940 of 2019), current as of mid-2026

VERIFY BEFORE RELYING

This reference encodes the petition-based system that is current operative law. Several automatic-expungement bills (e.g., HB 940 and HB 497 of the 2025 session) proposed shifting felony and misdemeanor relief to an automatic process by the Department of Public Safety. As of this writing those bills had not been confirmed as enacted. The agent must treat automatic expungement as PROPOSED, not active, and verify current statute before advising any user that relief happens without a petition.

How the agent should use this document

This reference is organized into ten sections matching the dimensions of a Mississippi expungement matter. Each section states the governing rule, cites the controlling statute, and closes with an **Agent Guidance** block describing how to apply the rule in a user conversation. Where the law is in flux or fact-dependent, a **Verify Before Relying** block marks it. The agent should always (1) identify the case outcome type first, because it determines everything downstream; (2) confirm the controlling county and court; and (3) never assert eligibility as a guarantee, since most conviction expungements are discretionary.

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Statutory shorthand used throughout

§ 99-19-71(1)	Misdemeanor first-offender conviction expungement (by petition)
§ 99-19-71(2)(a)	Felony conviction expungement — one conviction, 5-yr wait, excluded list
§ 99-19-71(4)	Non-conviction expungement — arrest/dismissed/dropped/no disposition/acquittal (mandatory)
§ 99-15-26	Non-adjudication (deferred adjudication); (5) directs expungement on dismissal
§ 99-19-72	\$150 filing fee per petition
§ 41-29-150 / 139	Drug-offense conditional discharge and marijuana auto-expungement
§ 63-11-30(2)	First-offense DUI expungement (Circuit Court, 5-yr wait, conditions)
§ 21-23-7(6), (13)	Municipal court misdemeanor expungement / multiple misdemeanors
§ 67-3-70(6)	Minor-in-possession (MIP) expungement

1. Eligibility rules

Mississippi has no single "expungement" pathway. Eligibility turns first on whether the matter ended in a **conviction** or a **non-conviction**, and then on the level of the offense. The five pathways the agent will encounter, in rough order of frequency:

Pathway A — Non-conviction (arrest, dismissal, dropped charges, no disposition, acquittal)

Under § 99-19-71(4) and § 99-15-26(5), the court **shall** expunge the record of any case in which an arrest was made, the person was released, and the case was dismissed, the charges were dropped, there was no disposition, or the person was found not guilty at trial. This is the broadest and easiest pathway. There is no first-offender limit and no cap on the number of non-convictions that may be expunged.

Pathway B — Misdemeanor conviction, first offender

Under § 99-19-71(1), a U.S. citizen convicted of a misdemeanor that is not a traffic violation, who is a first offender, may petition to expunge that one conviction. Grant is discretionary on a showing of rehabilitation. Separately, § 9-11-15(3) and § 21-23-7(6) allow justice and municipal courts to expunge any or all misdemeanors in that court on a showing of rehabilitation, two years of good conduct since the last conviction, and that the best interest of society is served.

Pathway C — Felony conviction

Under § 99-19-71(2)(a), a person may expunge **one** felony conviction five years after successful completion of all terms and conditions of the sentence, provided the felony is not on the excluded list (Section 3 below) and all fines and costs are paid. Grant is discretionary; the district attorney must receive at least ten days' notice before any hearing.

Pathway D — Drug-offense and marijuana relief

Under § 41-29-150, a person placed on conditional discharge for a first drug offense who was under 26 at the time may petition for expungement; if under 26 and the charge was dismissed on completion, expungement is mandatory in some circumstances and discretionary in others. Under § 41-29-139, a first or second misdemeanor marijuana-possession conviction is expunged as a matter of law, without petition, two years after the conviction. Drug-court graduates may also have records expunged as a matter of law on completion.

Pathway E — Specialized misdemeanors (MIP, first-offense DUI)

A minor-in-possession conviction can be expunged under § 67-3-70(6) no sooner than one year after dismissal or completion of sentence and payment of any fine. A first-offense DUI under § 63-11-30(2) or (3) can be expunged in Circuit Court at least five years after completion, subject to strict conditions (see Section 2).

AGENT GUIDANCE

Always classify the matter into one of these five pathways before anything else. Ask: did the case end in a conviction, or not? If not, route to Pathway A and reassure the user the court must grant it. If a conviction, determine misdemeanor vs. felony, then first-offender status, then whether the offense is excluded.

Citizenship matters: §§ 99-19-71(1) and (2) require the petitioner to be a U.S. citizen. Flag this early; a non-citizen may still pursue non-conviction expungement under subsection (4).

2. Waiting periods

Pathway / matter	Waiting period	Runs from
Non-conviction (dismissed, dropped, no disposition, acquittal)	None	Eligible immediately upon disposition
Misdemeanor first-offender conviction	None statutory; court requires showing of rehabilitation	Completion of sentence
Multiple misdemeanors (justice/municipal, § 21-23-7(6))	2 years of good conduct	Last conviction in any court
Felony conviction (§ 99-19-71(2)(a))	5 years	Successful completion of ALL terms and conditions of sentence
First-offense DUI (§ 63-11-30(2))	5 years	Successful completion of all terms and conditions
Marijuana possession, 1st/2nd misdemeanor	2 years (automatic, no petition)	Date of conviction
Minor in possession (MIP)	1 year	Dismissal or completion of sentence + payment of fine
Drug conditional discharge (§ 41-29-150, under 26)	On completion	Dismissal / discharge

The single most important phrase is **successful completion of all terms and conditions of the sentence**. The felony five-year clock does not start at conviction, release, or end of incarceration. It starts only when probation, parole, restitution, fines, fees, and every other condition are fully satisfied. A user who finished prison but still owes restitution has not started the clock.

AGENT GUIDANCE

When a user gives a conviction date, do not compute eligibility from it. Ask for the date all sentence conditions were completed, including final payment of fines and restitution, and compute the five-year felony window from that later date.

For non-convictions, there is no waiting period — if a user with a dismissed charge asks how long they must wait, the answer is zero.

3. Disqualifying offenses

The exclusions below apply to **felony conviction** expungement under § 99-19-71(2)(a). A felony conviction classified as any of the following cannot be expunged under this section, regardless of how much time has passed:

- **(i)** A crime of violence as provided in § 97-3-2
- **(ii)** Arson, first degree (§§ 97-17-1 and 97-17-3)
- **(iii)** Trafficking in controlled substances (§ 41-29-139)
- **(iv)** A third, fourth, or subsequent DUI (§ 63-11-30(2)(c) and (2)(d))
- **(v)** Felon in possession of a firearm (§ 97-37-5)
- **(vi)** Failure to register as a sex offender (§ 45-33-33)
- **(vii)** Voyeurism (§ 97-29-61)
- **(viii)** Witness intimidation (§ 97-9-113)
- **(ix)** Abuse, neglect, or exploitation of a vulnerable person (§ 43-47-19)
- **(x)** Embezzlement (§§ 97-11-25 and 97-23-19)

Other categorical limits and disqualifiers

- **One-felony limit.** Only one felony conviction may ever be expunged per person under this section.
- **Public officials.** No public official is eligible to expunge any conviction related to their official duties (§ 99-19-71(5)).
- **First-offender limit (misdemeanor).** Pathway B is for first offenders only; a prior conviction generally disqualifies, subject to the justice/municipal-court route.
- **Non-Mississippi convictions.** Only convictions obtained in Mississippi state courts are reachable; out-of-state and federal convictions are not expungeable under these statutes.
- **Traffic violations.** Misdemeanor traffic violations are excluded from § 99-19-71(1).

VERIFY BEFORE RELYING

The "crime of violence" definition in § 97-3-2 is amended periodically and controls exclusion (i), which is the most frequently litigated. The agent must treat the § 97-3-2 list as a live lookup, not a memorized set, and should never tell a user a violent felony is expungeable without confirming the current statutory definition.

AGENT GUIDANCE

Exclusions apply to the classification of the offense, not its label on the user's paperwork. If a user names a felony, map it to its statute and check against the ten categories before indicating eligibility. These exclusions do NOT bar non-conviction expungement. A charge for a crime of violence that was dismissed or resulted in acquittal is still expungeable under subsection (4).

4. Case outcome rules

How a case ended determines whether expungement is **mandatory** (court "shall" grant) or **discretionary** (court "may" grant on findings). This is the second most important classification after the conviction/non-conviction split.

Case outcome	Statute	Mandatory or discretionary	Key condition
Arrest, then released, case dismissed	§ 99-19-71(4)	Mandatory	Petition only
Charges dropped / nolle prosequi	§ 99-19-71(4)	Mandatory	Petition only
No disposition	§ 99-19-71(4)	Mandatory	Petition only
Found not guilty at trial	§ 99-19-71(4) (added 2019)	Mandatory	Petition only
Non-adjudication completed	§ 99-15-26(5)	Mandatory on dismissal	Complete all conditions
Misdemeanor conviction (first offender)	§ 99-19-71(1)	Discretionary	Rehabilitation finding
Felony conviction	§ 99-19-71(2)(a)	Discretionary	5 yrs, not excluded, DA notice, rehab finding

For discretionary grants the court must make its finding **on the record or in writing**. If the court denies a petition, § 99-19-71 requires the denial findings to be stated specifically, not generally. On grant, a nonpublic record is retained by the Mississippi Criminal Information Center solely to determine first-offender status in later proceedings, and law enforcement may retain expunged records for limited purposes. After expungement the petitioner legally stands as though never convicted and may answer accordingly on most applications.

AGENT GUIDANCE

Calibrate the user's expectations to the outcome type. For mandatory cases, the agent can say the court is required to grant a properly filed petition. For discretionary cases, the agent must frame the outcome as likely-but-not-guaranteed and emphasize the rehabilitation showing.

Expungement is not the same as the record vanishing entirely; a confidential CIC record persists for first-offender determinations. Do not tell users the record is destroyed without qualification.

5. Required forms

Mississippi does not publish a single statewide expungement form. Each petition is a drafted pleading filed in the court of origin, accompanied by a proposed order for the judge to sign. In practice, district attorney offices supply templates; the Fourth District (Washington, Sunflower, Leflore counties) publishes the most widely reused set. There are effectively **three petition templates plus matching orders**:

- 1 Petition for Dismissal and Expungement of Criminal Record (Dismissed Case)** — for non-conviction matters under §§ 99-19-71(4) and 99-15-26(5), with a matching *Order of Expungement for Dismissed Case*.
- 2 Petition for Expungement of Criminal Record (Misdemeanor Conviction)** — first-offender misdemeanor under § 99-19-71(1).
- 3 Petition for Expungement of Criminal Record of Criminal Conviction (Felony)** — one felony under § 99-19-71(2)(a), with a matching *Order of Expungement for Conviction*.

Every petition, regardless of type, contains these elements

- Court caption: court level and county, "State of Mississippi v. [defendant]," cause number.
- Petitioner identifying block: name, race and gender, DOB, SSN, charge, offense date, arrest date, arresting agency, agency case number, disposition date, and judgment of court.
- Numbered factual paragraphs reciting the charge, the disposition, and the statutory basis (with the operative statute quoted).
- A prayer for relief (the WHEREFORE clause) requesting an order of expungement.
- A signature and date block.
- A Certificate of Service confirming a copy was delivered to the district attorney.
- A separate proposed Order of Expungement for the judge's signature.

Supporting documents to attach

- Charging document (affidavit, citation, or indictment).
- Proof of disposition or the sentencing order.
- For convictions: an account-balance sheet from the clerk showing a zero balance.
- Some courts and DA offices also expect two character affidavits and the petitioner's own affidavit of good moral character attesting to rehabilitation and completion of sentence.

AGENT GUIDANCE

When helping a user prepare a filing, select the template by outcome type first, then ensure the identifying block and the correct statutory-basis paragraph match that type. The dismissed-case petition quotes subsections (4)/(5); the felony petition must recite the 5-year completion, the non-excluded classification, the one-felony attestation, and the 10-day DA notice. Always pair each petition with its proposed order. Courts will not grant relief without an order ready to sign.

6. Filing instructions

The standard sequence, applicable statewide:

- 1 Confirm eligibility** against the pathway, waiting period, and exclusion rules above.
- 2 Obtain records from the clerk** in the county where the charge originated: charging document, proof of disposition or sentencing order, and (for convictions) an account-balance sheet showing zero balance.
- 3 Prepare the petition and proposed order** using the template for the outcome type, attaching the clerk's documents as exhibits.
- 4 File with the clerk of the court of origin** — justice, county, circuit, or municipal — and pay the \$150 filing fee per petition.
- 5 Serve the prosecuting authority:** mail or deliver a copy of the petition and proposed order to the district attorney (or municipal/county prosecutor) for that court.
- 6 Provide statutory notice.** For felony and misdemeanor-conviction petitions, the district attorney must receive at least ten days' written notice before any hearing (§ 99-19-71(2)(b)).
- 7 Attend the hearing if set.** For discretionary petitions, be prepared to show rehabilitation on the record. The court enters its findings on the record or in writing.
- 8 Distribution of the signed order.** The circuit clerk forwards a certified copy of the expunction order to the Mississippi Criminal Information Center at the Department of Public Safety, which updates the central criminal database.

AGENT GUIDANCE

Venue is jurisdiction-specific and non-negotiable: the petition is filed in the court where the charge originated, not where the user now lives. Always pin down the county and court of origin before drafting. Each separate charge or cause generally needs its own petition and its own \$150 fee. A user with multiple cases across counties may have multiple filings.

7. Court-specific quirks

Mississippi expungement procedure is statutory but administered locally, so practice varies by court and county. The agent should treat the following as variability to confirm, not as fixed rules.

- **Forms are not standardized or online.** There is no statewide fillable form; counties and DA offices circulate their own templates. The Fourth District's published set is the de facto model but its hard-coded DA address and county options apply only to Washington, Sunflower, and Leflore.
- **Court level depends on the charge.** Felonies and indictable matters run through Circuit Court; lesser matters may be in County, Justice, or Municipal Court. The petition is filed in the court that had the case.
- **Municipal courts have their own track.** Under § 21-23-7(6) and (13), municipal courts handle their own misdemeanor expungements, sometimes allowing multiple misdemeanors with a two-year good-conduct showing — broader than the single first-offender misdemeanor under § 99-19-71(1).
- **Character-evidence expectations differ.** Some courts expect the petitioner's affidavit plus two unrelated character affidavits; others do not. Cornell's CJEI guidance describes the affidavit approach as common practice.
- **Clerk fees and copy charges vary.** Beyond the statutory \$150, clerks may charge for certified copies and document retrieval. Each clerk advises on hearing dates.
- **DUI expungement is Circuit-Court-only** and carries its own affidavit and BAC conditions, even for what is otherwise a misdemeanor.

AGENT GUIDANCE

Because local practice varies, the agent should confirm the specific court's requirements rather than assume the Fourth District template fits every county. When unknown, advise the user to call the clerk of the court of origin for filing specifics, copy fees, and hearing scheduling.

If a user is in a municipality, check whether the municipal-court route under § 21-23-7 is more favorable than § 99-19-71(1), especially for someone with more than one misdemeanor.

8. Fee information

Item	Amount	Authority / note
Statutory filing fee	\$150 per petition	§ 99-19-72; charged per petition/cause
Certified copies from clerk	Varies by county	Set locally; needed for exhibits and the CIC copy
Record retrieval / document fees	Varies by county	Clerk advises; "filing and document fees may apply"
Statewide criminal history (DPS)	Fee set by DPS	For obtaining the record to review (see Section 9)
Attorney fees (if represented)	Varies	Not required; many petitions are filed pro se

The \$150 statutory fee is the one fixed, predictable cost and it attaches to each petition. A person seeking to clear several separate causes should expect \$150 for each. The remaining costs are county-administered and the clerk of the court of origin is the authoritative source for the exact figures.

AGENT GUIDANCE

Quote the \$150 statutory fee with confidence, but describe clerk copy and retrieval charges as variable and direct the user to the specific clerk for exact amounts. Do not invent a total.

If cost is a barrier, note that petitions can be filed pro se without an attorney, and that non-conviction expungements (mandatory grants) are the most cost-effective to pursue.

9. Arrest / criminal record request process

Before a petition can be drafted, the user needs an accurate picture of what is on their record and the documents that prove disposition. There are two layers: the **court file** (held by the clerk of the court of origin) and the **statewide criminal history** (held by the Mississippi Department of Public Safety).

A. Court file — clerk of the court of origin

- Request from the clerk in the county where the charge originated.
- Obtain the charging document, the order or judgment showing disposition, and (for convictions) an account-balance sheet confirming a zero balance.
- These become the exhibits attached to the petition.

B. Statewide criminal history — Mississippi DPS / Criminal Information Center

- The Department of Public Safety, through the Mississippi Criminal Information Center (CIC), maintains the central criminal history database.
- A full statewide history typically requires a fingerprint-based request; a fee applies (set by DPS).
- For a record that may reach beyond Mississippi, an FBI Identity History Summary (fingerprint-based) is the federal equivalent.
- After an expungement is granted, the circuit clerk forwards a certified copy of the order to the CIC, which is directed to update or remove the relevant entries from the central database.

AGENT GUIDANCE

Frame record retrieval as step one of any expungement matter — the user cannot accurately self-report eligibility without seeing the disposition. Point users to the clerk of origin for the court file and to Mississippi DPS for the statewide history.

When a user is unsure how a case ended, the court file is the source of truth; do not rely on the user's memory of the outcome to classify the pathway.

VERIFY BEFORE RELYING

Specific DPS request methods, forms, and fee amounts change. The agent should verify the current DPS / Criminal Information Center process and fee at the time of advising rather than quoting a fixed amount or procedure from memory.

10. Sample petitions and completed examples

Below are completed, illustrative examples for each of the three petition types. Names, dates, and identifiers are fictional. These mirror the structure of the Fourth District templates and are generalized for statewide use. Court level, county, and the district attorney block must be adapted to the court of origin.

Example A — Non-conviction (dismissed case), §§ 99-19-71(4) / 99-15-26(5)

IN THE CIRCUIT COURT OF HINDS COUNTY, MISSISSIPPI
STATE OF MISSISSIPPI
VS. CAUSE NO. 2025-CV-0412
MARCUS T. JOHNSON PETITIONER
Race/Gender: Black/Male DOB: 04/18/1990 SSN: XXX-XX-4471
Charge: Possession of a controlled substance
Offense Date: 03/02/2018 Arrest Date: 03/02/2018
Arresting Agency: Jackson Police Dept Agency Case No.: JPD-18-2204
Disposition Date: 06/12/2019 Judgment: Order of Dismissal

PETITION FOR DISMISSAL AND EXPUNGEMENT OF CRIMINAL RECORD
1. Petitioner, an adult resident citizen of Jackson, Hinds County, MS, and a U.S. citizen, was charged and arrested on 03/02/2018.
2. The Hinds County Grand Jury indicted Petitioner on Count I (Exhibit 1).
3. On 06/12/2019 the charge was dismissed with prejudice (Order of Dismissal, Exhibit 2).
4. Petitioner files pursuant to Miss. Code Ann. 99-15-26(5) and 99-19-71(4): the court SHALL expunge the record of any case in which an arrest was made, the person was released, and the case was dismissed, dropped, had no disposition, or ended in acquittal.
5. Petitioner requests expungement of all records of this cause.
WHEREFORE Petitioner prays the Court enter an order of expungement.
Certificate of Service: copy mailed to the District Attorney, 7th Judicial District, on this 2nd day of June, 2026.

Example B — Misdemeanor first-offender conviction, § 99-19-71(1)

IN THE COUNTY COURT OF HINDS COUNTY, MISSISSIPPI
STATE OF MISSISSIPPI v. MARCUS T. JOHNSON CAUSE NO. 2025-CV-0517
Charge: Petit larceny (misdemeanor, non-traffic)
Conviction Date: 09/15/2020 Judgment: Misdemeanor Conviction

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD
1. Petitioner is a U.S. citizen and a FIRST OFFENDER as to this non-traffic misdemeanor.
2. Petitioner has paid all fines and costs (zero-balance sheet, Exhibit 1) and completed all terms of the sentence.
3. Petition is filed under Miss. Code Ann. 99-19-71(1).
4. Petitioner is rehabilitated and requests the Court so find on the record or in writing and order expungement.
WHEREFORE Petitioner prays for an order of expungement.
Note: 10 days' written notice given to the prosecuting attorney before any hearing. Certificate of Service attached.

Example C — Felony conviction, § 99-19-71(2)(a)

IN THE CIRCUIT COURT OF HINDS COUNTY, MISSISSIPPI
STATE OF MISSISSIPPI v. MARCUS T. JOHNSON CAUSE NO. 2025-CV-0631
Charge: Possession of stolen property (felony)
Conviction Date: 02/11/2017 Terms Completed: 02/11/2020

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD OF CRIMINAL CONVICTION

1. More than five (5) years have elapsed since Petitioner successfully completed all terms and conditions of the sentence, completed on 02/11/2020.
 2. The conviction is NOT a crime of violence (97-3-2), arson, trafficking (41-29-139), 3rd+ DUI, felon-in-possession (97-37-5), failure to register (45-33-33), voyeurism, witness intimidation, vulnerable-person abuse, or embezzlement, and is therefore not excluded under 99-19-71(2)(a).
 3. Petitioner has not previously had a felony expunged under this section and has paid all fines and costs (Exhibit 1).
 4. Petitioner has given the District Attorney at least ten (10) days' written notice before any hearing (99-19-71(2)(b)).
 5. Petitioner requests the Court find him rehabilitated, on the record or in writing, and order expungement of this one felony.
- WHEREFORE Petitioner prays for an order of expungement.

Proposed Order (all types)

Each petition is accompanied by a proposed Order of Expungement reciting the same caption and directing all relevant agencies — the clerk, the arresting agency, and the Mississippi Criminal Information Center — to expunge and seal the records of the cause, with a certified copy to be forwarded by the circuit clerk to the CIC at the Department of Public Safety.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Mississippi statutes and common local practice and is not legal advice. Statutes and local procedures change; the agent must verify current law before relying on any specific rule, especially the § 97-3-2 crime-of-violence definition, DPS record-request procedures, and the status of any automatic-expungement legislation.